COMBINED HARARE RESIDENTS ASSOCIATION
and
ALLAN NORMAN MARKHAM
versus
ZIMBABWE ELECTORAL COMMISSION
and
THE PRESIDENT OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, November 2025, 20 January 2025 and 3 February 2026.

Opposed Matter

T Biti, for the applicants
T.M Kanengoni, for the first respondent

MUNANGATI- MANONGWA J: This is an application for condonation for the late filing of a certificate of service in Case No. **HCH 3241/24** and for the reinstatement of the matter, which was struck off the roll after being deemed abandoned in terms of Rule 58(14) and (15) of the High Court Rules, 2021.

FACTUAL BACKGROUND

The applicants instituted a constitutional application against the respondents in terms of s 2(1) of the Constitution of Zimbabwe. They sought a declaration that the Delimitation Report prepared by the first respondent and gazetted by the President of the Republic of Zimbabwe on 20 February 2023, as Proclamation No. 1 of 2023, was invalid and ultra vires the Constitution.

The application was issued on 24 July 2024. The applicants' legal practitioners prepared a certificate of service on 29 July 2024. However, the certificate was only uploaded onto the Integrated Electronic Case Management System (IECMS) on 5 August 2024, three days outside the period prescribed by Rule 58(14).

The first respondent opposed the application, raising a preliminary objection that the matter was not properly before the court due to non-compliance with Rule 58(14) and (15) of the High Court Rules, 2021.

On 2 May 2025, Dembure J upheld the objection and ruled that the application was deemed abandoned, resulting in it being struck off the roll.

APPLICANTS' CASE

The first applicant submits that Rule 58(15) provides that where proof of service is not filed within the prescribed time, the matter is deemed abandoned. However, reliance is placed on Practice Direction No. 1 of 2025, which allows reinstatement of matters deemed abandoned upon a showing of good cause.

It is contended that the certificate of service was prepared timeously and that the delay was occasioned by technical challenges encountered during the uploading process on the IECMS platform. The delay amounted to only three days.

The first applicant further submits that the respondents were previously granted indulgence when they filed their opposing papers on 31 October 2024, despite having been served on 26 July 2024, a delay of approximately four months.

On the basis of these circumstances, the applicant submits that good cause has been shown and seeks reinstatement of the matter.

RESPONDENT'S CASE

The first respondent argues that Practice Direction No. 1 of 2025 is inapplicable to the present matter. It is submitted that the matter was deemed abandoned strictly in terms of Rule 58(14) and (15) of the High Court Rules, 2021, and not due to inactivity or want of prosecution.

It is further contended that the definitions contained in paragraph 2.1 of the Practice Direction relate exclusively to neglect in prosecuting a matter and do not extend to abandonment arising from non-compliance with specific rules of court.

The respondent also challenges the authority of the applicants, submitting that the second applicant did not depose to an affidavit nor expressly associate itself with the relief sought. It is further argued that the deponent of the first applicant's affidavit lacks authority, as no resolution authorising the institution of the reinstatement application was produced.

ISSUE FOR DETERMINATION

Whether the applicant has shown good cause entitling it to condonation and reinstatement of the matter.

ANALYSIS

The central issue in this matter is whether the late filing of the certificate of service should be condoned and whether the matter should be reinstated.

Rule 58(15) of the High Court Rules, 2021 provides that failure to file proof of service within the stipulated time results in the matter being deemed abandoned. However, the rule does not oust the inherent discretion of the court to grant condonation where good cause is shown.

Practice Direction No. 1 of 2025 applies to all matters in the High Court that have been deemed abandoned under the High Court Rules, 2021 or are inactive. Paragraph 1.1 of the Practice Direction makes this position clear. It states that,

> "The practice direction applies to all matters in the High Court of Zimbabwe that have been deemed abandoned under the provisions of the High Court Rules, 2021 or are inactive."

Accordingly, the respondent's contention that the Practice Direction is inapplicable is without merit given the clear provisions of paragraph 1.1 above.

The principles governing reinstatement and condonation are settled. In *FBC Holdings* v *Chiwanza SC 31/17,* the Supreme Court stated:

> "In considering applications for condonation of non-compliance with its rules, the court has a discretion which it has to exercise judicially in the sense that it has to consider all the facts and apply established principles bearing in mind that it has to do justice. Some of the relevant factors that may be considered and weighed one against the other are: the degree of non-compliance, the explanation thereof, the prospects of success on appeal, the importance of the case, the respondent's interests in the finality of the judgment, the convenience to the court and the avoidance of unnecessary delays in the administration of justice."

In the present matter, the degree of non-compliance is minimal. The delay was only three days. The explanation proffered — technical challenges encountered on the IECMS platform — is reasonable and plausible. There is no suggestion of wilful disregard of the rules or persistent neglect.

In *Director of Civil Aviation* v *Hall 1990 (2) ZLR 354 (S)*, the court held that condonation should not be granted where no explanation is given for the delay. In this case, an explanation has been provided, and it has not been shown to be unsatisfactory.

The applicant acted promptly upon discovering the default and brought this application without undue delay. This conduct demonstrates a genuine intention to comply with procedural requirements.

As regards the respondent's argument on authority and the alleged disconnect between the applicants, it must be noted that the original matter was instituted jointly. Reinstatement of the matter necessarily affects both applicants. The absence of a separate affidavit from the second applicant does not, in the circumstances of this case, render the application fatally defective. The objection is overly technical and does not advance the interests of justice.

Courts are enjoined to balance strict compliance with the rules against the overarching need to have disputes determined on their merits. While adherence to procedural rules is fundamental, rigid formalism should not defeat substantive justice where good cause has been shown.

CONCLUSION

This court does not condone laxity or disregard of court rules. However, where a litigant provides a reasonable explanation for a minor procedural default and acts promptly to remedy it, the court ought to exercise its discretion in favour of allowing the matter to be heard on its merits.

The applicant has shown good cause for the late filing of the certificate of service. The interests of justice favour reinstatement.

ORDER

Accordingly, it is ordered that:

1. The application for condonation for the late filing of the certificate of service be and is hereby granted.

2. The matter under **Case No. HCH 3241/24** be and is hereby reinstated and shall proceed in accordance with the rules of this court.

MUNANGATI- MANONGWA J……..

Tendai Biti Law, applicants' legal practitioners
Nyika, Kanengoni and Partners, first respondent's legal practitioners